RUNTIME STATE — PODCAST, EPISODE TWO

"SITA, Trapped Between Responsibility and Authority"

Target runtime: 19–22 minutes • Format: Solo-narrated structural essay with embedded legal narrative Voice direction: Same Runtime State register — measured, essayistic, sceptical but not cynical. This episode has a slightly different architectural problem from Episode One or Episode Three: it needs to hold a piece of *legal narrative* (the FDA–SAPS case) alongside a *structural diagnosis* (the mandate mismatch). The solution is to let the case be the evidence and the diagnosis be the argument — and to keep them in two distinct registers. Close-mic on diagnostic turns. Courtroom passages delivered at standard distance, slightly drier, almost read-aloud.

COLD OPEN — 00:00-00:35

[SOUND DESIGN — 00:00-00:03] Three seconds of clean studio room tone at -45dB.

[NARRATION — close mic. Flat, low. Almost incredulous.]

In 2021, the South African Police Service stopped paying its software vendor.

[PAUSE — 1 beat]

It did not stop *using* the software.

[PAUSE — 2 beats]

The Firearm Permit System. The Property Control and Exhibit Management System. The Visual Analysis System. Custom-built for the police. Deployed nationally. Used for seven years.

[PAUSE — 1 beat]

The vendor asked for payment. Got none. Switched the systems off. SITA — the state IT agency that administered the servers — modified the vendor's copyrighted source code and switched them back on.

[Half-beat]

Two separate court interdicts forbade exactly that conduct.

[Half-beat]

Use continued.

[PAUSE — 3 seconds]

[SOUND DESIGN — 00:30-00:33] Runtime State brand tone. Three seconds, C minor.

[NARRATION — standard distance.]

This is Runtime State. Episode two. SITA, trapped between responsibility and authority.

ACT I — THE ARGUMENT — 00:35-02:30

[NARRATION — settled, essayistic.]

The sequence I just read is real. It is in a Gauteng High Court judgment handed down in 2025, in a case called *Forensic Data Analysts v. National Commissioner of the South African Police Service*. I read the judgment in January of this year and wrote a thread about it. This episode is what follows from that thread.

[PAUSE — 2 beats]

The instinct, reading a sequence like that, is to reach for villains. Somebody at SITA did something indefensible. Somebody at SAPS gave them cover. Somebody else — a minister, perhaps — should have intervened and didn't. Fire the people, replace the systems, announce a modernisation programme.

[PAUSE — 1 beat]

That instinct is wrong.

[PAUSE — 2 beats]

[NARRATION — CLOSE MIC. This is the thesis.]

The argument of this episode is narrow. What happened in the FDA case is not a story about rogue behaviour. It is a story about a structural trap. SITA, the State Information Technology Agency, is repeatedly asked to guarantee continuity for systems the state depends on — without being empowered to lawfully own them, to resolve disputes about them, or to terminate them when they need to end.

[Half-beat]

The FDA judgment is not an aberration. It is the predictable endpoint of a mandate designed for procurement, operating in a world that now runs on infrastructure.

[PAUSE — 2 beats]

[NARRATION — standard distance.]

Over the next twenty minutes, we will do three things. First, we will walk through the case itself — the specific sequence of events the court found. Second, we will diagnose the eight structural features of SITA's mandate that made that sequence not just possible, but *likely*. And third, we will ask what a reformed mandate would actually need to contain, clause by clause, to prevent the next FDA–SAPS from happening.

[PAUSE — 2 seconds]

[SOUND DESIGN — soft page-flip, -30dB]

ACT II — THE CASE — 02:30–06:30

[NARRATION — reportorial, slightly drier. This is the evidence act. Deliver the facts as facts, not as argument.]

Here is what happened, in the order it happened, from the judgment.

[PAUSE — 1 beat]

The South African Police Service, over a period of roughly seven years, ran three custom software systems built by a company called Forensic Data Analysts. FDA. The systems were not peripheral. They were the Firearm Permit System — the national register of who may lawfully carry a gun. The Property Control and Exhibit Management System — how police track evidence through the chain of custody. And a Visual Analysis System. Mission-critical, all three.

[PAUSE — 1 beat]

In 2021, the Standing Committee on Public Accounts — SCOPA — raised questions about irregularities in the original FDA contract. Typical parliamentary oversight, the kind every major state IT contract goes through eventually.

[Half-beat]

SAPS responded by stopping payment. But it did not stop use.

[PAUSE — 2 beats]

FDA wrote to SAPS asking for payment on the outstanding licences. SAPS did not respond.

FDA wrote to SITA — who administered the servers the software ran on — asking for payment. SITA did not respond.

[Half-beat]

So FDA did what a vendor does when a client has stopped paying. It exercised its contractual right to suspend the licence. It switched the systems off.

[PAUSE — 2 seconds]

[NARRATION — slightly slower. This is the turn.]

SITA then modified FDA's copyrighted source code and switched the systems back on.

[PAUSE — 3 seconds]

FDA went to court. Got an interdict forbidding SITA from touching the code. Got a second interdict reinforcing the first. Both were granted.

[Half-beat]

SAPS and SITA continued to use the systems.

[PAUSE — 2 beats]

Eventually FDA instructed the Sheriff of the court to execute the order — to physically remove the systems. At which point the situation escalated in the way it does in South Africa when a structural problem meets an immovable deadline. Former minister Sydney Mufumadi, now an FDA executive, was asked to meet the National Commissioner. He and the FDA CEO were escorted by blue-light motorcade to a Presidential lekgotla. A price was agreed for SAPS to buy the systems.

[Half-beat]

SAPS changed its mind two hours later.

[PAUSE — 3 seconds]

[NARRATION — CLOSE MIC. Summary register.]

The court, looking at this record, made a finding of *mala fides*. Bad faith. Not a procedural irregularity finding. Not the paperwork was wrong. A finding that over a period of years, the state denied arrangements it knew existed, used software it knew it had no lawful right to run, and reactivated systems that had been placed under interdict.

[PAUSE — 2 beats]

The judgment found the oral agreement for the purchase of the systems binding. The cost: roughly six hundred and forty-four million rand, without the twelve months of unpaid licence fees on top.

[PAUSE — 3 seconds]

[SOUND DESIGN — soft page-flip.]

ACT III — THE EIGHT STRUCTURAL FAILURES — 06:30–13:30

[NARRATION — analytical register.]

Read the sequence again and the temptation is to assign blame. A SITA official made an indefensible decision. A SAPS commander refused to settle. A minister hesitated. All true, and all beside the point.

[PAUSE — 1 beat]

What the sequence actually shows is eight separate structural features of SITA's mandate, each of which made the outcome more likely. Remove any one of them and the sequence probably doesn't happen. Leave all eight in place and something like FDA-SAPS is not a risk — it is a waiting appointment. Let me walk through them.

[PAUSE — 2 beats]

ONE — MANDATE MISMATCH — 06:50–07:25

[Soft chime, -25dB]

SITA is an operator without ownership. It hosts the servers. It holds the privileged access credentials. It administers the systems day to day. But it does not own the intellectual property. It does not hold the budget. It does not make the procurement decision. Those sit with the client department.

[Half-beat]

The consequence: SITA can keep a system alive *technically* while the state is losing its entitlement to it *legally*. Use continues. Authority doesn't.

[PAUSE — 2 seconds]

TWO — INFRASTRUCTURE BLINDNESS — 07:25–08:00

[Chime]

Core state systems are still classified, in South African procurement law, as "procured IT services." Even after they have become sovereign infrastructure. Even after they have been running the national firearm register for seven years. There is no doctrine that marks the moment a vendor product crosses the line and becomes national dependency.

[Half-beat]

The consequence: procurement logic gets applied to a problem that needs continuity logic. They are not the same logic. Procurement asks *did we get value for money at the tender*. Continuity asks *what happens to the country if this system stops running on Tuesday*. The first question is fine for office laptops. It is catastrophic for the firearm permit register.

[PAUSE — 2 seconds]

THREE — CENTRALISATION WITHOUT TOOLS — 08:00–08:35

[Chime]

SITA was created, in part, to centralise state IT. Centralisation gives SITA visibility, access, and control. What it does not give SITA is shutdown authority, escrow mandates, or sunset enforcement. The centralisation is real. The instruments to act on that centralisation are not.

[Half-beat]

The consequence: SITA inherits the risk of state IT without the instruments to manage it. Responsibility arrives. Authority stays behind.

[PAUSE — 2 seconds]

FOUR — DEFENSIVE PROCUREMENT — 08:35–09:15

[Chime]

In a crisis, SITA retreats to process compliance. "Awaiting instructions." "Procurement irregularity." "The contract is under review." These are not cowardly statements — they are *lawful* statements, carefully constructed to protect the individual official from audit exposure.

[Half-beat]

The consequence: individual officials are protected. The state's legal position deteriorates. And increasingly, the courts are rejecting this retreat as a defence. The FDA judgment is one of several where the court has said, in effect: you cannot continue to use software while arguing that your procurement of that software was irregular. Pick one.

[PAUSE — 2 seconds]

FIVE — INCENTIVE ASYMMETRY — 09:15–09:55

[Chime]

Acting decisively in state IT carries personal audit exposure. Signing off on a settlement. Authorising an emergency payment. Switching off a system that a department says it needs. Every one of these actions creates a paper trail that a future Auditor-General, a future SIU investigator, a future parliamentary committee can scrutinise.

[Half-beat]

Delaying, by contrast, diffuses responsibility. A decision not made is a decision not on your file. The system rewards inaction dressed as compliance.

[Half-beat]

[NARRATION — CLOSE MIC.]

Doing the right thing becomes a career risk. And so the right thing, on average, does not get done.

[PAUSE — 3 seconds]

SIX — REPLACEMENT FANTASY — 09:55–10:45

[Chime]

"We'll just build another one."

[PAUSE — 1 beat]

This phrase appears, in various forms, in almost every South African state IT dispute of the last decade. The Home Affairs identification system — HANIS — has been "nearly ready" to be replaced for close to fifteen years. eNaTIS, the vehicle registration system, was going to be replaced; it wasn't. The FDA systems were the subject of a shadow replacement project, running in parallel to active litigation, the whole time.

[Half-beat]

The fantasy is structural. Embedded systems take years to replicate — often more years than the career of the official announcing the replacement. Data gravity is enormous. Users resist change in systems they have learned to work around. And while the replacement is notionally being built, the original system keeps running and keeps accumulating dependency.

[Half-beat]

Courts increasingly read replacement talk as bad faith — as negotiating leverage rather than serious intent. And they are not wrong to.

[PAUSE — 2 seconds]

SEVEN — NO STOP RULES — 10:45–11:20

[Chime]

Nowhere in South African law or SITA policy is there an enforced rule that says: if a system is mission-critical for X years, the state must either own it outright or place it in escrow.

[Half-beat]

The consequence: disputes drift indefinitely. There is no trigger that forces resolution. The only trigger in the FDA case was a sheriff at the door. That is a bad trigger. It is an *expensive* trigger. And it is the trigger the current mandate leaves available.

[PAUSE — 2 seconds]

EIGHT — THE VISIBLE VILLAIN — 11:20–12:10

[Chime]

And here is the eighth feature, which is the feature that makes all the others durable.

[PAUSE — 1 beat]

When a state IT dispute explodes, the departments decide. The ministers hesitate. Treasury negotiates. But SITA touches the servers. SITA flips the switches. SITA is the entity whose officials are named in the court papers, whose logo appears in the headlines, whose CEO is called before Parliament.

[Half-beat]

[NARRATION — CLOSE MIC.]

Structural failure, individual liability.

[PAUSE — 2 beats]

The architecture of the mandate is such that the people who actually carry the legal consequence of state IT collapse are never the people who designed the conditions under which the collapse was inevitable. That is not a bug. It is the load-bearing feature of the current arrangement. It is what makes the dysfunction politically survivable for the departments that benefit from it.

[PAUSE — 3 seconds]

THE STACK — 12:10–13:00

[NARRATION — stepping back. Synthesising.]

Eight features. Mandate mismatch. Infrastructure blindness. Centralisation without tools. Defensive procurement. Incentive asymmetry. Replacement fantasy. No stop rules. A visible villain.

[PAUSE — 2 beats]

Stack them together and read the FDA judgment again. The sequence stops looking like a series of bad choices by individual officials. It starts looking like the *only* sequence possible, given the constraints those officials were operating under.

[Half-beat]

SITA could not lawfully own the FDA systems — mandate mismatch. Nobody classified those systems as sovereign infrastructure when they quietly became it — infrastructure blindness. SITA had the technical access to modify the source code but no legal authority to do so —

centralisation without tools. When the pressure came, officials retreated to procurement language — defensive procurement. Anybody who tried to settle decisively risked personal audit exposure — incentive asymmetry. The replacement project was always coming next year — replacement fantasy. There was no legal trigger that forced resolution — no stop rules. And when the sheriff arrived, SITA was the entity standing in front of the servers — the visible villain.

[PAUSE — 2 beats]

[NARRATION — CLOSE MIC.]

Every single one of those features is fixable. None of the fixes are technically hard. All of them are institutionally hard.

[PAUSE — 3 seconds]

[SOUND DESIGN — page-flip.]

ACT IV — HOW SITA DESCRIBES ITSELF — 13:30–15:30

[NARRATION — analytical, slightly wry.]

I want to spend a minute on something that might sound peripheral but is actually central. The About page on the SITA website.

[PAUSE — 1 beat]

Here is what it says the agency does. I am quoting directly.

[Brief pause. Shift to reading register — slightly flatter, as if reading aloud.]

"SITA's role is to consolidate and coordinate the State's information technology resources to achieve cost savings through scale, increase delivery capabilities and enhance interoperability… managing the IT procurement and delivery process to ensure that the South African government gets value for money."

[PAUSE — 2 beats]

[NARRATION — back to analytical register.]

Every verb in that copy belongs to a procurement agent. *Consolidate. Coordinate. Manage the procurement and delivery process. Achieve cost savings through scale.* None of those verbs describe the stewardship of infrastructure the state cannot turn off.

[Half-beat]

The word *ownership* does not appear on the page. Neither does *continuity*. Neither does *escrow*. Neither does *sovereignty*, *lifecycle*, *sunset*, or *resolution*. The copy reads as if the job ends at the tender award — as if, once the contract is signed and the servers are humming, SITA's work is done and the rest is someone else's problem.

[PAUSE — 2 beats]

[NARRATION — CLOSE MIC.]

That is not a writing problem. That is a self-understanding problem.

[Half-beat]

An organisation that describes itself only in the language of acquisition will, when a dependency crisis arrives, reach for the only instruments it believes it possesses. More procurement. More coordination. More delivery management. None of those instruments resolve FDA–SAPS. None of them resolve HANIS. None of them resolve eNaTIS. The vocabulary itself forecloses the possibility of a different kind of action, because there is no word for it in the brochure.

[PAUSE — 3 seconds]

ACT V — WHAT A REFORMED MANDATE WOULD CONTAIN — 15:30–19:30

[SOUND DESIGN — Runtime State brand pad enters at 15:30. C minor, -28dB. Rides under this act.]

[NARRATION — summative register.]

So what would a reformed mandate actually need to contain?

[PAUSE — 1 beat]

This is the part of the episode where I would, under the influence of South African policy convention, produce a forty-page framework document with seven strategic pillars and fourteen enabling workstreams. I am going to resist that temptation and offer five clauses. Five. Each one addresses a specific structural failure we have walked through.

[PAUSE — 2 beats]

One. A classification doctrine. State IT systems must be formally classified, in law, as either commodity IT or sovereign infrastructure. The classification is triggered by objective criteria — years in continuous use, number of citizens served, dependencies downstream. Once a system crosses the threshold, the mandate governing it changes. Commodity IT lives under procurement rules. Sovereign infrastructure lives under continuity rules. The FDA systems should have been reclassified in roughly year three. They weren't, because no doctrine existed to trigger it.

[PAUSE — 2 beats]

Two. A standing escrow regime. Any system classified as sovereign infrastructure must have its source code, its data schemas, and its operational documentation placed in legal escrow with a neutral third party — academic institution, professional body, independent trust. If the vendor fails, the state has lawful access. If the state fails to pay, the vendor has lawful recourse. Neither party gets to modify copyrighted code on a server in the middle of the night.

[PAUSE — 2 beats]

Three. A formal sunset protocol with legal cover. Every sovereign infrastructure system gets a named lifecycle owner — a human being, accountable to Parliament, whose job is to plan the system's end-of-life. When the sunset protocol is triggered, the lifecycle owner gets statutory protection against personal audit exposure for decisions made in good faith under that protocol. This addresses incentive asymmetry directly. You cannot ask officials to make hard decisions and then punish them for having made decisions.

[PAUSE — 2 beats]

Four. A transition fund. A ring-fenced treasury instrument, independent of departmental budgets, that can be drawn on when a sovereign system needs to be bought out, migrated, or retired. The FDA settlement was six hundred and forty-four million rand. Had a transition fund existed in 2021, the settlement could have happened in 2021, at a fraction of the eventual cost in litigation, reputational damage, and operational disruption. Delay compounded into the price.

[PAUSE — 2 beats]

Five. Shutdown authority. SITA, or a successor body, must have the statutory power to shut down a sovereign infrastructure system when it is operating under unresolved legal dispute. Not the power to keep it running. The power to stop it. This sounds backwards and is not. The current architecture incentivises keeping systems running past the point of lawful authority, because nobody wants to be the person who pulled the plug. Making the plug-pull a *statutory duty* under specific conditions removes the career risk and restores the option.

[PAUSE — 3 seconds]

[Pad blooms, -22dB.]

[NARRATION — full register for the landing.]

Five clauses. None of them technically hard. All of them institutionally hard, because all of them require the South African state to stop thinking of state IT as something it buys and start thinking of it as something it stewards.

[PAUSE — 2 beats]

[NARRATION — CLOSE MIC. Close register.]

SITA is not the villain of the FDA judgment. SITA is the visible piece of a mandate that was badly designed twenty-five years ago and has not been rewritten since. The people who work there are operating without instruments. The departments who depend on them are operating without stop rules. The courts are now doing the work that policy should have done in 2015, or 2018, or 2022 — and doing that work at enormous cost, in six-hundred-million-rand increments, system by system.

[PAUSE — 2 beats]

A state that cannot lawfully own the infrastructure it cannot lawfully turn off is a state that will keep ending up in court.

[Half-beat]

And the court will keep finding, correctly, that the state acted in bad faith.

[Half-beat]

Because the alternative — acting in good faith, under the current mandate — is institutionally impossible.

[PAUSE — 4 seconds]

[Pad resolves to suspended major. Holds.]

SIGN-OFF — 19:30–20:00

[NARRATION — warmer close.]

This has been Runtime State. Episode two. *SITA, Trapped Between Responsibility and Authority.*

[Half-beat]

The original thread on the FDA–SAPS judgment is on X, linked in the show notes. The full judgment is publicly available through the law library — also in the show notes. The companion long-read, with the eight-failure analysis fully cited, is at *runtimestate.com/posts/sita-mandate-analysis*.

[PAUSE — 1 beat]

I'm Sethu Nguna. Thank you for listening.

[Pad fades over 5 seconds to silence.]

PRODUCTION NOTES

Total runtime target: 20 minutes. Act III (the eight failures) is the longest segment by design. Each failure gets its own chime, its own short dossier, and a 2-second closing pause. The cumulative rhythm is the argument — the listener should feel the stack building.

Register shifts — this episode has three distinct registers, which is one more than Episode Three had.

- **Close-mic diagnostic** — Cold Open, Act I thesis, Failure Five close, Failure Eight close, Act IV close, Act V landing
- **Standard essayistic** — Act I, most of Act III, Act V clauses
- **Reading / reportorial** — Act II (the case sequence), the SITA About-page quotation in Act IV

The reading register is new. Act II needs to feel almost like a judge's summary of the facts — drier than the rest of the episode, slightly flatter, almost as if you are reading aloud from the judgment itself. The shift from reportorial back to analytical between Act II and Act III is a structural hinge; make sure there is a full 2-second page-flip between them.

Sound palette (identical to Episodes One and Three).

- Studio room tone at -45dB throughout
- Runtime State brand pad at cold open and Act V
- Chime markers at each of the eight failures
- Page-flip between Acts II–III and III–IV
- No ambient field recording. No percussion.

Chapter markers.

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00:00  Cold Open — SAPS Stopped Paying
00:35  Act I — The Argument
02:30  Act II — The Case
06:30  Act III — The Eight Structural Failures
06:50  Failure 1 — Mandate Mismatch
07:25  Failure 2 — Infrastructure Blindness
08:00  Failure 3 — Centralisation Without Tools
08:35  Failure 4 — Defensive Procurement
09:15  Failure 5 — Incentive Asymmetry
09:55  Failure 6 — Replacement Fantasy
10:45  Failure 7 — No Stop Rules
11:20  Failure 8 — The Visible Villain
12:10  The Stack
13:30  Act IV — How SITA Describes Itself
15:30  Act V — What a Reformed Mandate Would Contain
19:30  Sign-off
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A note on the case narration. Act II is the most legally-sensitive part of the episode. Every factual claim in it is drawn directly from the judgment, which is publicly available. Still: this is where a lawyer-review pass before release is worth doing. The *mala fides* finding in particular should be quoted accurately and in context. If the producer has any doubt about a phrasing, flag it for legal review rather than softening it in the booth — the strength of the episode depends on the facts being stated precisely.

Reference listens. For the case-narration register specifically, listen to *Serial Season 1* episode one, where Sarah Koenig walks through Adnan Syed's timeline. Present tense, factual, legally careful, emotionally neutral. Act II should feel like that.